

ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ ගැසට් පත්‍රය
අති විශේෂ
The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 1981/78 - 2016 අගෝස්තු මස 25 වැනි බ්‍රහස්පතින්දා - 2016.08.25
No.1981/78 - THURSDAY AUGUST 25, 2016

(Published by Authority)

PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

WESTERN PROVINCE PROVINCIAL COUNCIL

**Announcement made under Section 2 of the Local Government Authorities (Standard By-laws) Act, No. 6 of 1952
read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989**

THE by-law on the sub-division of lands in the area of authority of the Pradeshiya Sabha and the by-law on the inspection of Sub-divided plans and building construction plans made by the Chief Minister and the Minister in charge of the subject of Local Government of the Western Province in pursuance of Section 2 of the Local Government Authorities (Standard by-laws) Act, No. 6 of 1952 read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989 shall hereby be published in accordance with the provisions further stated in such Section.

It is hereby notified that the Pradeshiya Sabhas have been devolved with power under Section 126 of the Pradeshiya Sabha Act, No. 15 of 1987 read with Section 122 of the same Act to make bylaws that contain the provisions included in the said draft bylaws and such draft bylaws, subsequent to adoption by the Provincial Council of the Western Province in pursuance of the provisions of the aforesaid Section 2 and Sub Section 3 of the Local Government Authorities (Standards bylaws) Act, No. 6 of 1952 read with Section 2 of the Provincial Council (Consequential Provisions) Act, No. 12 of 1989, will receive the authority for acceptance by the Pradeshiya Sabhas of the Western Province upon publishing a *Gazette Notification* to the effect of such adoption.

ISURA DEVAPRIYA,
Chief Minister and Minister of Finance and Planning, Engineering Services,
Law and Order, Local Government and Provincial Administration, Economic
Development, Power and Energy, Environmental Affairs, Water
Supply and Drainage and Tourism of the Western Province.

At the Chief Ministry of the Western Province,
Savasthri House,
Colombo 7,
09th August 2016.



BYLAW ON THE SUB-DIVISION OF LANDS WITHIN THE AREA OF AUTHORITY OF THE
PRADESHIYASABHA

1. Sub section 126(vi) of the Pradeshiya Sabha Act, No. 15 of 1987 has provided for powers to make this bylaw.
2. This bylaw shall be enacted for making provisions for the purpose of subdividing lands for sale, developing, maintaining, regularizing and administering the portions of land so subdivided and the matters incidental there to within the area of authority of Pradeshiya Sabhas of the Western Province.
3. This bylaw may be cited as the Bylaw on the Subdivision of Lands within the Area of Authority of the Pradeshiya Sabha.
4. Every person making subdivisions of any land for sale in an area of authority of a Pradeshiya Sabha in the Western Province shall, prior to forwarding the subdivided plan relating to it for approval, register himself for the said purpose in the Pradeshiya Sabha where the area of authority of the Pradeshiya Sabha in which the said land is situated relates.
5. When applying for registration under Section 4 above, doing so shall be through the application referred to in Schedule I hereof.
6. For the purpose of the registration under this bylaw, the applicant, in order to obtain the development license of the property relating to the subdivision, should make a payment as a deposit in the Pradeshiya Sabha in a sum equivalent to the amount estimated by the Technical Officers of the Pradeshiya Sabha on the related development activities to be carried out.
7. Every Plan for the subdivision of lands in the area of authority of the Pradeshiya Sabha shall be an approved plan under the Urban Development Authority Act or the Housing and Town Development Ordinance.
8. Until such time a compliance certificate under the Urban Development Authority Act or the Housing and Town Development Ordinance as the case may be, is obtained from the Chairman in the event of the subdivision of lands within the area of authority in respect of the approved plan that has been approved, no person should engage in the sale or disposal or publically advertising the sale of any part of subdivided land.
9. Where the smallest part of the land that was subdivided in the case of lands in excess of one hectare that are being subject to subdivision for sale in an area of authority pertaining to the Housing and Town Development Ordinance within the area of authority of the Pradeshiya Sabha is less than 40 perches, the owner of the land should, under a duly executed instrument, donate 10% of the remaining land excluding the extent of land reserved for internal roadways from the entire area of land after having allotted such extent of remaining land for common amenities, to the Pradeshiya Sabha.
10. The registered applicant under this bylaw,
 - (a) should develop the internal roadways pertaining to a subdivision in the area of authority of the Pradeshiya Sabha according to proper standards in consultation with the Chairman as per the recommendations of the planning committee or planning technical committee of the Pradeshiya Sabha.
 - (b) should design the internal drainage system in such a manner as to connect it to a main water outlet.
 - (c) should maintain the remaining parts of the land in a manner that causes no harm to any party until such time the rights concerning each portion of the land become disclaimed.
 - (d) should report to the Secretary on considerations relating to the sale of the parts of lands for the purpose of Section 154 of the Pradeshiya Sabha Act, No. 15 of 1987.

11. The Secretary of the Pradeshiya Sabha should, following the issuance of a compliance certificate by the Chairman in relation to a subdivision of land under the Urban Development Authority Act or the Housing and Town Development Ordinance, report to the District Assistant Commissioner of the Local Government together with a report of recommendation of the planning committee or planning technical committee of the Pradeshiya Sabha on such subdivisions of the land within a week of the issuance of such compliance certificate by the Chairman.
12. The applicant who sought registration under this bylaw may, following the receipt of the compliance in relation to the subdivided plan, make an application for claiming monies of deposit together with a certified copy thereof to the District Assistant Commissioner of Local Government and the District Assistant Commissioner of Local Government should, after having satisfied that the matters involving the relevant subdivision of land has been in an orderly manner, refund the deposit concerned to the applicant.
13. A person who happens to be an offender on two occasions under this bylaw should be blacklisted as an incapacitated individual for such purpose within the area of authority of the Pradeshiya Sabha.
14. Where the applicant becomes inappropriate for compliance and the applicant by himself accordingly comes forward to withdraw his application, the Assistant Commissioner of Local Government should on the request of the applicant, release the monies of deposit concerned as set out in Section 12 and accordingly revoke the respective registration.
15. Where the person who applied for registration under this bylaw fails to reclaim the monies of deposit under Section 12 or Section 13 within a period of 3 years of the date of such deposit, such monies should be credited to the revenue of the Provincial Council Fund.
16. Breach or violation of any provision of this bylaw is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as prescribed in Sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.
17. In this bylaw, unless otherwise required by the interpretation of the context -

“Chairman” means the Chairman of the Pradeshiya Sabha
“Secretary” means the Secretary of the Pradeshiya Sabha and
“Applicant” means the owner of the land or the developer representing the owner of the land.

SCHEDULE I

Application for registration of the subdivision of lands

1. Name of the applicant/Name of the company, if one such :
2. Address of the applicant :
3. Identity Card No. of the applicant :
4. Tel. No. of the Applicant : E-mail :
5. Whether the applicant is the owner of the land or the developer thereof :
6. Name and address of the owner if the applicant is not the owner :
(A copy of the agreement between the owner and the developer in relation to the purpose concerned should be attached)
7. District in which the land is situated :

8. Area of authority of the Pradeshiya Sabha :
9. Grama Seva Niladhari Division
10. No. of the respective title deed, name of the lawyer/name of the notary (Copies should be attached)
11. No. of the relevant plan (Copies should be attached)
12. No. of land portions to be divided
13. Whether this is the first registration or prior registration has been obtained
14. Previous experience on subdivision and sale of lands in the Western Province (in the preceding five years) year, name of land, extent, Pradeshiya Sabha/Town Council/Municipal Council

I hereby certify that the information furnished above is true and accurate.

.....
Applicant.

Date :

BYLAW ON THE INSPECTION OF SUBDIVIDED PLANS AND BUILDING CONSTRUCTION PLANS

1. Sub section 126(viii) of the Pradeshiya Sabha Act, No. 15 of 1987 has provided for powers to make this bylaw
2. This bylaw shall be enacted for making provisions for the purpose of the drawing of subdivided plans of lands, construction of buildings, inspection of such plans, fixing charges therefor and the matters incidental thereto within the area of authority of the Pradeshiya Sabha in respect of which the provisions of the Housing and Town Development Ordinance relate.
3. This bylaw may be cited as the Bylaw on the inspection of Subdivided Plans and Building Construction Plans.
4. (i) Under this bylaw, every permanent construction made on the surface of the ground or inner thereof and every portion of the land pertaining to such permanent construction within the areas of authority (hereinafter called as the area of authority) where the Housing and Town Development Ordinance relates shall be in conformity with an approved plan in accordance with the provisions of the Housing and Town Development Ordinance.

(ii) The approval granted by the Chairman under this section should be applicable for the completion of the development activities over a period of 5 years from the date of such approval and the Chairman, in the event of such development activities do not come to an end before the expiry of the said period of 5 years, should, on the request of the applicant, further extend such approval for the development activities for a maximum period of 3 years.
5. The subdivided plans of lands and building construction plans submitted for approval under Section 4 above should be applied for in duly completed forms of application described under Schedule 1 and Schedule 2 respectively of this bylaw and every application issued in this regard should accompany an instruction sheet showing how it should be completed.
6. The charges recoverable for the issuance of a form of application for the purpose of this bylaw shall be those pronounced on being decided upon from time to time by the Sabha by way of a resolution.
7. The Chairman, until such time the Planning Technical Committee of the Pradeshiya Sabha (hereinafter called in certain places as committee) inspect and makes recommendations on each of the forms of application and the relevant plans of lands and plans of building construction preferred under Section 5 of this bylaw, should not grant approval thereto.

8. The Planning Technical Committee of the Pradeshiya Sabha shall, in perpetual composition, comprise of the Secretary of the Pradeshiya Sabha, Works Superintendent, Chief Technical Officer and the Medical Officer of Health or his representative and it may, according to exigency, be possible to have additional members included in such composition on being decided by the Chairman with the approval of the District Assistant Commissioner of Local Government.
9. The committee, in addition to the purpose referred to in Section 7 above, shall be entrusted with the making of recommendations necessary for the determination of the residential, commercial and industrial categories relating to the physical planning in the area of authority within which the Housing and Town Development Ordinance is in force in the area of authority of the Pradeshiya Sabha, making recommendations on amendments to be made to such planning to the Chairman, the regulation of unauthorised construction and making recommendations in relation thereto to the Chairman after making recommendations pertaining to the certification of compliance.
10. In the granting of approval for the subdivided plans of lands and the construction plans of buildings forwarded and the issuing of compliance certificates for such plans, the charges recoverable therefor shall be those pronounced on being decided upon from time to time by the Sabha by way of resolution.
11. In determining charges under Section 10 above, following shall be reckoned as the criteria therefor ;
 - (a) In the case of plans of lands, on the extent of lands thereof ;
 - (b) In the case of plans of buildings, on the square metres thereof ;
 - (c) In the case of a boundary wall or side wall, on linear metres thereof ;
 - (d) In the case of telephone and telecommunication tower, on elevated metres thereof.
12. Where the plan submitted together with a form of application under this bylaw is for a subdivided plan of the land meant for development.
 - (a) It should be a plan prepared in the scale of 1 : 2000 in the case of a land in extent of five acres or more.
 - (b) It should be a plan prepared in the scale of 1 : 1000 in the case of a land less than five acres, or else, a plan prepared in the measurement scale of 1 inch to 1 chain.
 - (c) Where applicable, the plan should be correctly marked with reserves of canals, reserves of rivers, reserves of tanks, reserves of roads *etc.*
 - (d) Roads with stipulated width in accordance with the provisions of the Housing and Town Development Ordinance should have been drawn.
 - (e) Buildings, if any, that already exist in the respective land should have been marked.
 - (f) Contour lines and spot levels of the land and the street levels, where necessary, should have been marked.
 - (g) The plan being submitted should be a one that surveyed and drawn within a period of 10 years immediately prior to the date of its submission.
 - (h) In the case of a portion of land having connectivity with curves of a road, the boundaries should have been shown with a circular location at the end of the adjacent limits of such road.

13. Under this by law,

- (i) Where the plan submitted together with a prescribed application is a plan of building construction, the said plan should be inclusive of the ground plan, side plan, front plan, cross sectional elevation, details of all the foundations and details of the doors and windows of the building that is proposed to be constructed.
- (ii) Where the building is not a blind wall or boundary wall, a distance of at least 1 meter between the boundary and the building should be kept.

14. Where an application for approval under Section 5 above is made, an officer on whom the Chairman has delegated specific power for the purpose should register the application having satisfied that the requirements referred to in Schedule 3 have been met.

15. A plan relating to every application made under Section 5 herein should be inspected by a committee meeting within a period of two weeks from the date of the submission of such application and the Chairman, based on the observations made by such committee, should as soon as possible, made his decision as to the granting or turning down of such approval and such date of his decision making should not exceed 14 days from the date of the submission of such application.

16. A decision made by the Chairman under Section 5 above should be conveyed forthwith to the applicant and any person aggrieved by such decision may make an appeal to a Board of Appeal appointed by the Minister for such ad hoc purpose in terms of the provisions of the Housing and Town Development Ordinance.

17. The Board of Appeal appointed for the purpose of appeal by the Minister should comprise of the membership of the District Assistant Commissioners of Local Government with the Commissioner of Local Government of the Western Province in chair and the persons as decided upon by the Minister on the recommendation of the Commissioner of Local Government of the Western Province.

18. The maximum period of time for submission of the appeal to the Board of Appeal shall be three months of the date from which the decision of the Chairman was conveyed in terms of the provisions of the Housing and Town Development Ordinance.

19. All the sums of money charged for the purpose of this bylaw should be maintained in a separate account of the fund of the Pradeshiya Sabha.

20. Under this bylaw,

- (a) the emoluments may be paid to the members of the Planning Technical Committee from the fund of the Pradeshiya Sabha as decided upon from time to time by the Commissioner of Local Government of the Western Province.
- (b) It is legitimate to pay emoluments for the members of the Board of Appeal under Section 17 above from the fund of the respective Pradeshiya Sabha.
- (c) Allowances payable under this Section shall not be in a manner that exceeds the amounts of money charged by the Pradeshiya Sabha under this bylaw.

21. The provisions of this bylaw shall be in operation under the provisions set out in the Housing and Town Development Ordinance.

22. This bylaw shall apply to the constructions situated in an area of authority of the Pradeshiya Sabha within the area of authority pertaining to the provisions of the Housing and Town Development Ordinance as at the effective date of this bylaw shall be considered as those proposed to be constructed.

23. Breach or violation of any provisions of this bylaw is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as prescribed in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.

24. In this bylaw, unless otherwise required by the inerpretation of the context -

Minister means the Minister in charge of the subject of Local Government of the Western Province,

Chairman means the Chairman of the Pradeshiya Sabha,

Applicant means the owner of the property in reference to the application or the developer and,

Building construction means the construction of a building a new, addition and alteration of a part.

SCHEDULE 1

Application for the approval of subdivision of lands

For office use only

No.....

Fee :

Receipt No. :

Date :

To Chairman,

Through Secretary.....Pradeshiya Sabha/Town Council

Sir,

I/we would hereby like to request you to issue me/us with a permit for the purpose of subdividing my/our land situated at Rate No..... road within the ward of.....in the local government area of authority of.....

I/We herewith wish to submit to you following particulars in triplicate.

.....
Signature of the Land Owner/Applicant.

In case the applicant is not the owner of the land,

I, as the owner of the land, do hereby authorize Mr./Mrs.....

Developer of the Land for the purpose of subdividing the said land.

Date :

.....

Name :

Signature of the authorizer
(Owner)

Address :

.....

Signature of the qualifying person
(Developer)
(Official Seal)

Date :

Name

Address :

The above mentioned declaration was affirmed/sworn and signed before me on this.....day of..... in the
year of.....

.....

Justice of Peace
(Official Seal)

I hereby certify that the subdivided plan bearing No. made by me on..... and forwarded together with this application has been prepared as a plan in consideration of the legal requirements for the purpose of development.

.....

Signature of the Licensed Surveyor
(Official Seal)

Name :.....

Date :.....

(01) Particulars of the applicant

(a) Name and Address :.....

(b) National Identity Card No. :.....

(c) Telephone No. :.....

(02) Details of the location in relation to the subdivision

(a) Title of the land :-.....

(b) Location :-.....

(c) Rate No. :-.....

(d) Road :-.....

(e) Ward No. :-.....

(f) Survey Plan No. :-.....

(g) Name of the Surveyor :-.....

(h) Extent of the land :- Ha/A. R. P.....

(03) Current use of the land : Residential/Commercial/Industrial/Agricultural/Other

(04) Development of the portion of land :-

(a) State whether you intend to fill and reclaim the portion of land and, if so, give details of the levels in relation to proposed roadways and drains. State where necessary whether you have obtained the approval of the Sri Lanka Land Reclamation and Development Corporation, approval of the Assistant Commissioner of the Agrarian Service, in the case of a paddy land, approval of the Coconut Development Board, in the case of a coconut land and the approval of the Rubber Control Department, in the case of a rubber land, (Recommendation letters should be submitted)

(b) Proposed development of the land : (Extent of land allotted for each development work)

For residential purposes	:-.....
For commercial purposes	:-.....
For industrial purposes	:-.....
For institutions	:-.....
For open areas, parks and play grounds (common purposes)	:-.....
For streets and access roads	:-.....
Other	:-.....

(05) Infrastructure facilities	As it exists	Proposed
Water		
Sewerage		
Electricity		

(06) In the event that a building requires to be divided into parts owing to the subdivisions, state whether the layout in respect of each part of such building is in conformity to the rules, regulations and bylaws pertaining to the construction of buildings.

.....

.....

.....

(07) Approximate date on which the development work is expected to be commenced (for each of the stages) :-

.....

.....

I/We do hereby certify that the foregoing particulars are true and accurate.

.....
Signature of Applicant.

Date.....

For Office use only

Management Assistant in charge of the subject of rates

For recording of information on Rates/Acreage Tax of the property referred to above

.....

..... O. I. C./Management Assistant (Buildings)

Date Name.....

Signature.....

O. I. C./Management Assistant (Buildings)

The name.....has been registered for..... Rate/Acreage Tax No.....
at.....Road in Ward No..... Levies have/have not been paid up to/...../20.....

Value of Rate/Average Tax in arrears is Rs. approximately

Description of the property.....

.....

Date..... Management Assistant (Rates)

Name.....

Signature.....

Secretary,

Prescribed amount of charges Rs.....was paid by Receipt No.....on 20..../...../..... furthermore, Rs.....
approximately have been paid as Rates/Acreage Tax.

Management Assistant (Rates)/O. I. C.

Date : Name.....

Signature.....

Inspection Report

- (1) File No. :-.....
- (2) Date on which the file was received in for inspection :-.....
- (3) Date on which the application was made :-.....
- (4) Name and address of the applicant :-.....
- (5) (i) Address in which the proposed land is situated :-.....
- (ii) Category to which it belongs :- Residential/Mixed Residential/Industrial/Commercial
- (6) Proposed use :-.....
- (7) Extent of land :-..... No. of Lots:-.....
- (8) (i) Source of the access road that provides way for the proposed land :-.....
- Road Development Authority/Provincial Road Development Authority/Local Government Body/Private Road
- (ii) Width thereof :-.....
- (iii) Vehicle turning roundabout at the end of the road has been built/has not been built/Not applicable.
- (iv) Width of the access road is adequate/not adequate.
- Notes :*
-
-
-
- (9) A drainage system and culverts to drain water away has been/has not been shown in the plan.
- (10) Has an area of 10% for common amenities excluding roads from an appropriate place been reserved in view of the fact that extent of land is in excess of 1 ha. or more ? Yes/No.
- (11) (i) Proposed land is a highland/low land/marshy land/paddy land/meadow land/coconut cultivated land/rubber cultivated land/other crops cultivated land.
- (ii) Approval from relevant institutions, where reclamation of the land is necessary, has been obtained/has not been obtained.
- (iii) Approval from relevant institutions, where felling of tree is proposed, has been obtained/has not been obtained.
- (Eg. - Coconut Development Board/Rubber Control Board)

(iv) Approval from relevant institutions, where excavation of earth is necessary, has been obtained/has not been obtained.

(v) In the development of land proposed for subdivision, it gives rise/does not give rise to adverse impact towards landslides/soil erosion/environment.

(vi) Where it is observed that there is an impact from (v) above, recommendations from the National Buildings and Research Institute for development of the land has been/has not been adduced.

(12) It is possible to sufficiently obtain infrastructure facilities ? Yes/No.

(13) Survey Plan No..... Date.....

Name of the Surveyor

(14) Prescribed colours and standards have been/have not been adhered to in the preparation of the subdivided plan.

Other particulars and the recommendation of the officer (Industrial officer/Technical Officer) who examines and report.

I make following recommendations based on the overall findings observed by me after having gone through the items 9 to 14 above following the inspection of the site concerned.

.....

.....

Name Signature.....

Designation Date.....

(15) Recommendation of the Superintendent of Works/Technical Officer :

.....

.....

Name Signature.....

Designation Date.....

(Official Seal)

Recommendation of the Planning Technical Committee

Execution of the following development activities is recommended/Not recommended due to following reasons

.....

.....

.....

Name	Designation	Signature
.....		
.....		
.....		

Use of the portions of land bearing Nos..... depicted in the Survey Plan No..... for the execution of the development activities involving residential/mixed residential/commercial/industrial purposes as stated in the Planning Technical Committee recommendations is allowed. /disallowed due to reasons stated in the Planning Technical Committee recommendations.

.....
Chairman,
Pradeshiya Sabha,.....
(Official Seal).

Date.....

Permit for the subdivision of a land under the provisions of the Housing and Town Development Ordinance

Mr./Mrs.....

.....

.....

Execution of the following development activities in relation to subdivided plan of the land situated at..... (address of the location) as per Survey Plan No.
dated.....made by the Surveyor, Mr./Mrs.
and submitted by you under Application No. is allowed.

.....
.....
.....
.....

Conditions

- * Respective subdivisions should be made exactly as allowed under the provisions of the Housing and Town Development Ordinance and the bylaw on the examination of subdivided plans and building construction plans.
- * Subsequent to the conclusion of the development activities referred to above, compliance certification for the sale/use of the blocks of lands should be obtained upon application.
- * In the instances where the subdivisions of land are in excess of one hectare or more, the land area of 10% reserved for common amenities should be donated to the local government bodies by a deed of gift prior to applying for compliance certificates.
- * As the sale/use of blocked out lands and the construction of buildings thereon without obtaining the compliance certificates is an unauthorized development activity in terms of the provisions of the Housing and Town Development Ordinance, the bylaw on the examination of subdivided plans and building construction plans and the bylaw on the subdivisions of lands in the area of authority of the Pradeshiya Sabha, such an activity will be an offence punishable under the Housing and Town Development Ordinance and the bylaws abovementioned.

.....

Chairman,

Pradeshiya Sabha,

Date :

Instructions to be adhered to in the completion of the application form

An application for subdivision submitted correctly on completion of the following requirements may well be met with approval without delay.

- (1) Original of the subdivided plan that has been drawn in the scale of -
 - (a) 1 : 2000 in the case of a land in extent of five acres or more ;
 - (b) 1 : 500 or 1 : 1000 or 1 inch to 1 chain in the case of a land less than five acres ;

should be submitted together with one copy with required details.

 - i. Location of the land, buildings thereon, if any should be shown in the plan
 - ii. Scale of the plan, direction of the North and the situation of the adjacent parts of lands or the buildings should be shown
 - iii. Access route to the land area and the proposed roadways in the land (together with its width) should be shown.
 - iv. All the then existed drains, waterways, natural resources and the proposed drains *etc.* should be shown.
 - v. High tension power cables should be shown.
 - vi. Where the land is one hectare or more, an extent of land of 10% of the remaining land area excluding the roadways should be marked in a suitable place for community and common activities.
- (2) A copy of the master plan of the land proposed for subdivisions should be submitted, A copy of the deed thereof should also be forwarded.
- (3) Proposed and existing use of each block of lands, their largeness and the boundaries should be shown separately.
- (4) Plan Streamlining Certificates, from the Water Resources Board, if pipe borne water is available for lands and whether it is from Water Supply Board or from underground water in sufficient quantities for the proposed development activities and from the Electricity Board in connection with the power supply and also from the National Buildings and Research Institute where necessary, should be forwarded.
- (5) The rough sketch showing the access route for the easy inspection of the land proposed for the subdivision should be submitted.
- (6) Upon fulfillment of all necessary requirements, a permit for the physical development activities of the land will be granted.
- (7) Subdivision of the land should physically be made only after obtaining the permit issued for that purpose.
- (8) Following the receipt of the permit, the compliance certificate should be applied for after having physically developed the land in accordance with the plan.
- (9) Sale of the land portion, construction of the building or any activity involving advertising should not be undertaken until the receipt of the compliance certificate.
- (10) The duly perfected form of application should be submitted.

- (11) Original of the Survey Plan and 02 certified copies thereof along with a copy of the respective deed should be produced.
- (12) Minimum land area should be 12.5 perches, However, it is legitimate to determine the minimum land area for the purpose of a subdivision by the Chairman from time to time in the event of the obtaining of pipe borne water.
- (13) A copy of the respective judgment, if the survey plan has been made consequent upon a judgment.
- (14) Recommendation from other institution should be produced only when necessary.

SCHEDULE 2

Application for obtaining the approval for the purpose of constructing a building

PART I

1. Name of applicant :
2. Address :
.....Telephone No.
3. Ownership of the land : Transfer/Lease/Other (Give details) :
4. Architect's/Draughtsman's/Designer's
Name :
Designation :
Address :
Telephone No. :

PART II

1. Development site :

Rate No./Household No.	
Name of the road	
Address	

2. Purpose applied for : New construction/Reconstruction/Addition/Alternation

In the case of addition, the approved original plan with red colour highlighted respective part of the land should be produced.

3. Previously approved Plan No. (if applicable) :

4. Nature of the Development

	<i>Residential</i>	<i>Commercial</i>	<i>Industrial</i>	<i>General</i>	<i>Other (Give details)</i>
Existing					
Proposed					

5. Particulars of the land :

5.1 Extent of the land :- A : R : P :

5.2 Whether the subdivided plan has been approved ? Yes/No.

5.3 If approved

Ref No.	
Date	

5.4 Nature of the land :

<i>Highland</i>	<i>Plain</i>	<i>Low lying</i>	<i>Paddy</i>	<i>Marshy</i>	<i>Slopy</i>	<i>Flood prone</i>

6. Access route :

Width	ft./.....m.
Ownership	R. D. A. /P. R. D. A./Local Government institutes/private

7. Distance to the boundaries :

From the middle of the road	ft./m.
From the rear	ft./m.
From the right boundary	ft./m.
From the left boundary	ft./m.

8. Particulars of the building :

No. of floors	
Height of the building	ft./m.
Height between floors	ft./m.

9. Details of the room :

<i>Code Nos. for rooms</i>	<i>Proposed use</i>	<i>Interior length and width</i>	<i>Sq. area of the outwardly open doors</i>	<i>Sq. area of the windows</i>	<i>Sq. are of the outwardly open doors and windows</i>	<i>Maximum height and minimum height</i>
					<i>Sq. area of the rooms</i>	

10. Finishing of the building (Building materials used) :

Walls	
Roof	
Floor	

11. Disposal of waste :

Waste water	
Sewage	
Solid waste	
Rain water	

12. Sq. area of the building (.....Sq. ft./Sq. m.) :

<i>Ground level</i>	<i>Existing</i>	<i>Proposed</i>	<i>Total</i>
Single storey			
Underground Storey			
Ground Floor			
1st Floor			
2nd Floor			

13. If the proposed development is for an induty/hotel/storage depots or for non residential use -

Nature	
Items stored	
Expected number of employees	
No. of rooms	
Raw material proposed to use	
Waste disposed	

14. If it is intended to install airconditioning, whether the certificate from a qualified person for the purpose has been obtained ? Yes/No.

Ref. No. Date :

15. If the power generators are used, capacity thereof (Horse Power)

16. No. of vehicle parking places

17. Where electric lifts have been in use, whether the power generators for such purpose are in right capacity ?

18. Where the building constructed is for the public use, whether the access facilities and toilet facilities for disabled citizens have been provided ?

19. Where it is for a residential use over 3000 sq. ft. and a commercial and industrial purpose over 4000 sq. ft. whether a fire preventing certificate therefor and the layout for the placement of such fire preventing equipment have been produced ? Yes/No.

I/We do certify that the foregoing information is true and correct. Furthermore, I/ We would like to state that I/We do not wish to carry out any activity until the award of the permit. I/We hereby undertake to adhere to the provisions of the Housing and Town Development Ordinance, the provisions of the amended acts as well as the provisions of the bylaw on the examination of subdivided plans and building construction plans and the bylaw on the subdivisions of lands in the area of authority of the Pradeshiya Sabha.

.....
Signature of the applicant.

Date. :

If the applicant is not the owner of the land, the owner of the respective land should authorize the applicant for the proposed development.

I affirm/swear and declare that I authorize..... who has signed above to execute the development activities relating to this application in my land as described above.

.....
Signature of the owner.

Date :

Name of the owner :

Address :

Telephone No. :

Signed the above declaration after taking oath/making affirmation before me aton thisday of20.....

.....
Justice of Peace
(Official Seal)

Report of the Rates Division

1. Rate No. :

2. Name of the road :

3. Ward :

4. Ownership :

5. Rates in arrears :

Secretary,

Prescribed charges of Rs. was paid by Receipt No.on...../...../.....20....
Furthermore, the acreage tax of Rs. approximately has been paid.

.....
Management Assistant (Rates) O. I. C.

Date :

Name :

Signature :

Inspection Report

1. Is the proposed development located in an area of safety from flood waters ? Yes/No.
2. Is the proposed development located in the areas out of flood water retention declared by the Sri Lanka Land Reclamation and Development Corporation ? Yes/No.
3. Is there any obstruction to natural water receding systems due to proposed development ? Yes/No.
4. What is the nature of the development located adjacent to the proposed development site ?
.....
5. Nature of the proposed development : Residential/Commercial/Officers/Stores/Industrial/.....
6. Is the proposed development a new construction ? Is it an alternation to the existing building ?.....
7. To what category the proposed development site belongs according to the development plan.....
Residential/Commercial/Industrial/Other (Give details)
8. Is it accordingly in compliance with the proposed development zonalisation ? Yes/No.
9. Particulars of the development site :
 - 9.1 Largeness of the development sitePerches/.....Sq. m.
 - 9.2 Largeness of the proposed buildingPerches/.....Sq. m.
 - 9.3 Floor ratio of the proposed development.....
 - 9.4 Open land areaPerches/.....Sq. m.
 - 9.5 Has the subdivided plan of the land been approved ? Yes/No.
 - 9.6 Is it possible to construct buildings after setting aside the extents of land shown in the ground plan
 - 9.7 Distance between the proposed building if overhead power cables exist
10. Access route
 - 10.1 Ownership of the access route : Road Development Authority/Provincial Road Development Authority/
Local Government Bodies/General/Private
 - 10.2 Width thereof :.....ft./.....m.
 - 10.3 Building limit as per development plan
 - 10.4 Are the street lines and building limits relevant to the proposed development in conformity to 10.3 above ? Yes/No.
11. Parking of vehicles required for the proposed development :
 - 11.1 Number of vehicle parking lots required as per the development.....
 - 11.2 Number of vehicle parking lots provided.....
12. Is the illumination and ventilation of the proposed building adequate ? Yes/No.

13. Adequacy of the open area reserved in the land for the proposed development

Rear side	Yes/No.
Front side	Yes/No.
For gaining illumination and ventilation	Yes/No.

14. If the proposed development is an industry

14.1 Nature of the industry :.....

14.2 Does it cause environmental pollution :.....

14.3 It is necessary to obtain the recommendation of the Central Environment Authority for the consideration of the approval ? Yes/No.

14.4 Has the fire preventing certificate been provided ? Yes/No.

14.5 Does the proposed development give rise to traffic congestion ? Yes/No.

14.6 What is the horse power of the proposed development ?.....

14.7 Number of employment opportunities of the proposed development ?.....

14.8 Have the common amenities necessary for the employees been adequately provided ? Yes/No.

14.9 If the proposed development is for a store, what are the materials proposed to be stored therein ?.....
.....

15. Has the construction work been already commenced on the proposed development ? Yes/No.

15.1 If so commenced, at what stage is it ?

Up to foundation	
Up to roof level (without roof)	
With roof	
Constructed completely	

16. Remarks :.....
.....
.....
.....

17. Recommendation of the Technical Officer :

.....

.....
 Signature and official seal
 Tech. Officer/Works Suptd.

.....
 Date of inspection

Name :

Designation :

18. Recommendation of the Works Superintendent (if required) :

.....

.....
 Signature and official seal
 Works Superintendent.

.....
 Date of inspection

Name :

Designation :

19. Report and recommendation of the M. O. H./P. H. I. (if applicable)

.....

.....
 Signature of the official seal of M. O. H. /P. H. I.

Name :

Date :

Recommendation of the Planning Technical Committee :

.....
.....
.....

Recommended conditions, if any :

.....

<i>Name</i>	<i>Designation</i>	<i>Signature</i>

I do/do not approve the building plan bearing No. subject to conditions as recommended above/without any conditions.

.....
Chairman,

Pradeshiya Sabha, :
(Official seal)

Date :

At the Office of the
.....20.....

Mr./Mrs.

.....

.....

Licence for the construction of the building No.

.....

I would like to inform you that the plan forwarded by you under above number Building Application for the construction a new building/the addition off a part of a building/the construction of a boundary wall/the reconstruction of a building has been approved.

Accordingly, following conditions will be in force with regard to the above mentioned construction.

1. Construction work of the building should commence within five (5) years of the approval of the building plan thereof. If the construction was not so commenced, the validity period of the approved plan should have to get extended and such an extension will only be for a period of three (3) years.
2. Further, the construction work of the building should be carried out in accordance with the approved plan unchanged and the alterations thereto, if any, should be met with approval upon submission of a revised plan accordingly.
3. Soon after the completion of the work of the building the compliance certificate (Occupation Certificate) thereof should be obtained before the occupation of the building. A form of application issued by this office for the purpose in terms of the Housing and Town Development Ordinance should be forwarded to apply for the respective certificate and it will be a punishable offence to make use of any building for occupation without obtaining the compliance certificate in terms of the Housing and Town Development Ordinance.
4. The boundary wall should be constructed in a distance of from the middle of the road.

I herewith send the copy of the approved building plan.

.....
Chairman

Pradeshiya Sabha,.....
(Official seal).

SCHEDULE 3

Preliminary inspection report on the building plan application :

- | | |
|---|-----------------------|
| (a) Has the building application been duly completed ? | Yes/No |
| (b) Has the building application been signed and certified by the applicant/developer/draughtsman/architect/engineer (as applicable) | Yes/No |
| (c) Is the site in relation to construction in conformity to an approved plan ? | Yes/No |
| (d) Have the prescribed building limits been shown under an approved survey plan ? | Yes/No/Not applicable |
| (e) Have the new additions of alterations, if any, to the approved building plan been separately highlighted with colour ? | Yes/No/Not applicable |
| (f) Have the front view, side view and cross section view of the building been shown under the plan submitted ? | Yes/No/Not applicable |
| (g) Have the drawings been submitted after correctly keeping the boundary limits relevant to building limits and street line limits under the building plan ? | Yes/No/Not applicable |
| (h) Have the respective structural designs been submitted in the case of residential or commercial buildings over two floors ? | Yes/No/Not applicable |
| (i) Has the vehicle parking space been provided according to correct approvals | Yes/No |
| (j) Has an acceptable assurance being given with regard to water supply ? | Yes/No/Not applicable |
| (k) Have the payments on rates or other taxes payable to the local government institution in respect of the property been completely made ? | Yes/No/Not applicable |
| (l) Have the confirmation with regard to following requirements, where applicable, been made ? | Not applicable |
| i. Electric lifts - Yes/No/Not applicable | |
| ii. Power generators - Yes/No/Not applicable | |
| iii. Air conditioners - Yes/No/Not applicable | |
| (m) Have the clarifications/concurrences of the following institutes, where necessary, been obtained as far as they are applicable ? | |
| (a) Central Environment Authority | Yes/No/Not applicable |
| (b) Sri Lanka Board of Investment | Yes/No/Not applicable |
| (c) National Building Research Institute | Yes/No/Not applicable |
| (d) Geological Survey and Mines Bureau | Yes/No/Not applicable |
| (e) Ministry of Defence | Yes/No/Not applicable |

(f) Fire preventing services	Yes/No/Not applicable
(g) Insurance Institutes	Yes/No/Not applicable
(h) Civil Aviation Authority	Yes/No/Not applicable
(i) Department of Archaeology	Yes/No/Not applicable
(j) Department of Irrigation	Yes/No/Not applicable
(k) Telecommunication Regulatory Commission	Yes/No/Not applicable
(l) Electricity Board	Yes/No/Not applicable
(m) Department of Labour	Yes/No/Not applicable
(n) Land Reclamation and Development Corporation	Yes/No/Not applicable
When necessary,	
(o) Provincial Road Development Authority	

Checked by,

.....
(Technical Officer)

09-380